

25VECV02057 25VECV02057

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-08

Motion: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

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Case Number: 25VECV02057 Hearing Date: July 8, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

CHRISTOPHER L.
CRABB, an individual,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO., INC., a
California corporation; and DOES 1-10, inclusive,

Defendants.

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CASE NO: 24VECV02057

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

Dept. U

8:30 a.m.

July 8, 2026

I.

BACKGROUND

This case is a lemon
law action filed by Plaintiff Christopher L. Crabb against Defendant American Honda
Motor Co., Inc.

On May 2, 2024,
Plaintiff filed his complaint against Defendant, alleging breaches of
warranties in violation of the Song-Beverly Act.

On June 11, 2024,
Defendant filed its answer to the complaint.

On November 5, 2024,
Plaintiff filed his notice of settlement of the entire case.

On April 1, 2026,
Plaintiff filed his motion for attorneys' fees, costs, and expenses.

Also on April 1, 2026,
Plaintiff also filed his costs memorandum, seeking \$1,409.40 in litigation costs.

On June 25, 2026,
Defendant filed its opposition brief as to Plaintiff's motion for attorneys' fees, costs, and expenses.

As of 9:00 a.m. on July
2, 2026, Plaintiff had filed no reply brief.

II. LEGAL STANDARD

If a buyer-plaintiff prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Civ. Code, § 1794 (d).

III. DISCUSSION

Plaintiff seeks an award of costs and attorneys' fees in the total amount of \$24,053.75. The motion is denied as untimely.

If a buyer-plaintiff prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Civ.

Code, § 1794 (d).

Here, Defendant sent Plaintiff a 998 offer for \$15,000.00 on October 23, 2024. (Atkinson decl., ¶ 4.) On April 8, 2025, the Court dismissed this action with retained jurisdiction to enforce the settlement under Code of Civil Procedure section 664.6. (Atkinson decl., ¶ 7.) On August 3, 2025, defense counsel contacted Plaintiff's counsel to inquire about Plaintiff's fee demand, but counsel failed to respond. (Atkinson decl., ¶¶ 8-9.) On April 1, 2026, nearly one (1) year after dismissal, Plaintiff filed his motion for attorneys' fees, costs, and expenses.

Defendant complains that Plaintiff waited nearly an entire year after accepting Defendant's 998 offer to file his motion for attorneys' fees. Defendant cites California Rules of Court, Rule 3.1702 (b)(1), which states, "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court-including attorney's fees on an appeal before the rendition of judgment in the trial court-must be served and filed within the time for filing a notice of appeal" i.e., within 60 days after notice of entry of judgment.

Defendant also cites case law supporting its position that settlements entered under Code of Civil Procedure section 664.6 are properly treated as judgments for purposes of Rule 3.1702. See *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649 ("voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees"); see also *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 426-427.

The Court agrees with Defendant that Plaintiff's motion is untimely under Rule 3.1702 (b)(1) because Plaintiff waited more than 60 days after dismissal before filing his motion for attorneys' fees. Because Plaintiff delayed filing his motion until after the time available for appeal, Rule 3.1702 (b)(1) requires the Court's denial of Plaintiff's motion. Plaintiff filed no reply brief to argue otherwise.

The motion is denied as untimely.

IV.

CONCLUSION

Plaintiff Christopher L. Crabb's motion for attorneys' fees, costs, and expenses is DENIED.

Defendant American Honda Motor Co., Inc. is ORDERED to give notice.

DATED: July 8, 2026

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Judge

of the Superior Court